DEPARTMENTAL GENERAL ORDER

OLIVETTE POLICE DEPARTMENT
OFFICE OF THE CHIEF OF POLICE

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TYPES OF LEAVE

I. PURPOSE

The purpose of this General Order is to establish guidelines to be followed when utilizing different types of leave granted by the City.

II. ADMINISTRATIVE LEAVE

The City may grant Administrative Leave with pay to an employee, as a matter of discretion by the City Manager (or his designee), when no other paid leave category is available or applicable and leave without pay would not be appropriate. This discretion includes granting Administrative Leave with pay when a disciplinary decision is pending. The City Manager may also authorize Administrative Leave without pay.

The authorization of Administrative Leave to an employee will be put in writing and forwarded to the Human Resources Manager for proper payroll processing and placement in the employee's personnel file.

III. BEREAVEMENT LEAVE

In case of death to an employee's spouse, mother, father, daughter, son, brother, sister, grandparent, grandchild, mother-in-law, father-in-law, brother-in-law, sister-in-law, son-in-law, daughter-in-law, niece or nephew, an employee shall be granted up to a maximum of three working days leave of absence with pay for days occurring in the first ten scheduled work days (80 hours) following date of death. This includes "step" relations, legal guardians or ward, and primary caregivers for these relationships.

Employees may attend co-worker funerals with pay. The Chief of Police, with the approval of the City Manager, may use other city personnel to ensure that service and operational needs are being met during these funerals.

In all cases of bereavement leave, the City Manager or Chief of Police may require evidence of death at his or her discretion. Any additional time off for bereavement leave may be granted by use of sick leave for extenuating circumstances, vacation leave, or leave without pay at the discretion of the Chief of Police. The City Manager may extend the use of bereavement leave at times other than immediately following the date of death at his or her discretion if the circumstances warrant it.

IV. FAMILY AND MEDICAL LEAVE (FMLA)

The City provides leave to eligible employees in accordance with the Family and Medical Leave Act (FMLA). Under the FMLA, eligible employees may take up to 12 weeks of unpaid leave each year for specified family and medical reasons.

A. Definition of Serious Health Condition

For purposes of this policy, a "serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

- Any period of incapacity or treatment connected with inpatient care (i.e., an overnight stay) in hospital, hospice, or residential medical care facility; or

- A period of incapacity requiring absence of more than **three calendar days** from work, school, or other regular daily activities that also involves continuing treatment by (or under the supervision of) a health care provider; or

- Any period of incapacity due to pregnancy, or prenatal care; or

- Any period of incapacity (or treatment therefore) due to a chronic serious health condition (e.g., asthma, diabetes, epilepsy, etc.); or

• A period of incapacity that is permanent or long-term due to a condition for which treatment may be effective (e.g., Alzheimer's, stroke, terminal diseases, etc.); or

• Any absences to receive multiple treatments (including any period of recovery therefrom) by, or on referral by, a health care provider for a condition that likely would result in incapacity of more than three consecutive days if left untreated (e.g., chemotherapy, physical therapy, dialysis, etc.).

Employees shall contact the Human Resources Department if they have questions concerning the definition of a "serious health condition."

B. Employee Eligibility

To be eligible for FMLA leave, an employee must have worked for the City:

• for at least 12 months, and

• for at least 1,250 hours during the 12 months preceding the start of the leave.

C. Leave Entitlement

Eligible employees may take FMLA leave for one or more of the following reasons:

• for the birth or placement of a child for adoption or foster care;

• to care for a spouse, child, or parent with a serious health condition; or

• when the employee is unable to perform the functions of his/her position because of his/her own serious health condition.

To determine eligibility for leave, the City uses a calendar year.

D. Employee's Notice Requirements

In order for the City to accommodate an employee's workload during his or her absence, an employee seeking to take FMLA leave must provide both the Chief of Police and the Human Resources Manager with at least 30 days' advance notice, when the leave is foreseeable. If the leave is not foreseeable, an employee is expected to provide both the Chief of Police and the Human Resources Manager with as much advance notice as possible. In the event of medical leave for planned medical treatment for the employee or for the employee's spouse, child or parent, the employee is required to make a reasonable effort to schedule the treatment so as not to unduly disrupt the City's operations.

All supervisors must immediately notify both the Chief of Police and the Human Resources Manager if they have reason to believe an employee's absence is due to an FMLA - covered reason.

E. Medical Certification and Other Required Documentation

An employee must provide the City with a medical certification supporting the need for FMLA leave due to a serious health condition affecting the employee or the employee's spouse, child or parent. The certification must set forth the beginning and expected ending dates of the leave. In the case of intermittent leave, the certification must also provide the dates and duration of the treatments necessitating the intermittent leave. Forms are available from the Human Resources Department.

An employee must also provide periodic reports during FMLA leave as to his status and intent to return to work and may be required to submit a "fitness-for -duty" certification before the employee can return to work. In some cases, the City may require a second or third medical opinion (at the City's expense) and periodic recertification of the serious health condition, and when the leave is a result of the employee's own serious health condition, a fitness for duty report to return to work. If an employee fails to provide any required certification within 15 days, the City may deny leave until the certification is provided. If an employee elects to take FMLA leave in order to care for a family member, the employee may be required to provide reasonable documentation confirming a family relationship.

F. Intermittent Leave

An eligible employee may take FMLA leave on an intermittent or reduced schedule basis only if "medically necessary," or otherwise approved by the Chief of Police. When intermittent leave is needed, the employee must try to schedule the leave so as not to unduly disrupt the Department's operations. The City may temporarily transfer the employee to an alternative position (with equivalent pay and benefits) in order to better accommodate an employee's intermittent or reduced leave schedule.

G. FMLA Leave Runs Concurrently with Other Types of Leave

FMLA leave is unpaid leave (although employees may be eligible for disability payments and/or workers' compensation benefits under those insurance plans). When FMLA leave is requested because of an employee's own serious health condition, or to care for a covered relation with a serious health condition, any accrued sick leave first will be substituted for any unpaid FMLA leave. When an employee exhausts all but 5 (five) days of accrued sick leave, accrued vacation leave and holiday leave will be substituted for unpaid FMLA leave. The substitution of paid leave time runs concurrently with the unpaid FMLA leave. Further, in no case can the substitution of paid leave time for unpaid leave time result in an employee's receipt of more than 100 percent of his/her salary. FMLA leave runs concurrently with any time off work covered by workers' compensation and with other types of leave, i.e. vacation leave.

H. Benefits During FMLA Leave

During any period of FMLA leave, the City will continue to pay its portion of any group health insurance coverage for the employee on the same terms as if the employee had continued to work. Where applicable, the employee must timely pay his share of health insurance premiums while on FMLA leave. The City may recover premiums it paid to maintain health coverage for an employee who fails to return to work from FMLA leave, unless the employee is unable to return due to a serious health condition or something else beyond the employee's control. Medical certification is required under such circumstances.

The employee’s use of FMLA leave will not result in the loss of any employment benefit that accrued prior to the start of the employee’s leave, nor will seniority be affected. However, benefit accruals, such as vacation and sick leave, will be suspended during any unpaid leave.

I. Job Restoration After FMLA Leave

Upon timely return from FMLA leave, an employee will be restored to his original job or to an equivalent job with equivalent pay, benefits, and other terms and conditions.

J. Leave Due To Birth/Adoption

FMLA leave for birth or placement for adoption or foster care must conclude within 12 months of the birth or placement. In addition, if an employee and the employee's spouse are both employed by the City, both are jointly entitled to a combined total of 12 work weeks of family leave for the birth or placement of a child for adoption or foster care.

K. FLSA Considerations

Salaried executive, administrative, professional and other employees of the City who meet the Fair Labor Standards Act (FLSA) criteria for exemption from overtime do not lose their FLSA-exempt status by using any unpaid FMLA leave.

L. Military Family Leave

The City provides leave to eligible employees in accordance with FMLA regulations as related to employees who have family members in military service. Please see the Military Family Leave policy.

M. Other Provisions

The FMLA does not affect any federal or state law prohibiting discrimination. This policy is intended to explain benefits available to eligible employees under the FMLA. It is not intended to create any rights to leave beyond those created by the FMLA. If

additional information is needed on the FMLA, please contact the Director of Human Resources. When an employee gives notice of the need for FMLA leave, the employee will be given additional information as to his rights and responsibilities under the FMLA.

V. JURY DUTY

The City of Olivette provides paid leave to full-time employees who are required to serve on jury duty or are requested by the City to testify as a witness in a City related civil, criminal, legislative or administrative proceeding. Jury duty leave is paid at the employee's base rate at the time of the leave and does not include overtime or any other forms of compensation.

The employee must provide documentation of the requirement for jury duty, subpoena compliance, etc., with his or her leave request. Such requests must be submitted to the supervisor with as much notice as possible so arrangements can be made to accommodate the absence.

Employees on jury duty should keep up with their job responsibilities, if possible. An employee who is on jury duty typically must report for their regular City duties for the remainder of the day upon completion of court or jury service, or request approval for use of other available paid time off. Any payment for jury duty received by the employee may be retained by the employee.

Court appearances for testimony, investigation and court preparation as a result of official duties as a City employee are compensated as actual hours worked and are not classified as paid leave.

In all other cases, involving court appearances for testimony, investigations, court preparation and any other non-employment related reason, employees are required to use accrued vacation or holiday leave. If a non-exempt employee has no accrued vacation or holiday leave, the employee's time off for these non-employment related reasons will be considered a leave without pay. For unusual or extended jury or subpoena circumstances that are not covered herein, the City Manager may authorize an alternative leave provided in these policies that doesn't adversely impact the employee.

VI. LEAVE WITHOUT PAY

In extraordinary circumstances, and at its sole discretion, the City may grant employees an unpaid leave of absence (LOA). All requests for LOA must be submitted in writing and must fully explain the reasons for the request. Whenever possible, an employee must request leaves of absence at least thirty days in advance of the beginning date of LOA.

A LOA of up to 30 days may be authorized by the Chief of Police. Any LOA beyond 30 days must be authorized by the City Manager.

This policy will be administered consistently with the City's obligations under the Americans with Disabilities Act. A LOA will not be authorized unless there is a reasonable expectation that the employee will return to employment with the City at the end of the approved leave period and the LOA will not create an undue hardship on the City. Employees are required to return all City equipment before a leave of absence becomes effective.

A. Use of All Other Available Leave

All of the employee's accrued vacation and holiday leave and/or leave authorized under FMLA must be used prior to authorizing a LOA. If the LOA is due to illness or injury, all sick leave must also be used prior to authorizing a LOA.

B. Criteria

Factors considered by the City in granting a LOA include, but are limited to, the reason for the leave, Departmental work requirements, the employee's length of service with the City, work performance and disciplinary history.

C. Reasons for LOA.

A LOA may be considered in the following circumstances:

- Recovery from extended illness, injury or temporary disability
- Extended care for immediate family members
- Educational purposes when successful completion will contribute to the best interests of the City
- Public service assignment
- Personnel exchange programs which emphasize intergovernmental relations

D. Documentation

The need for a medical LOA must be supported by documentation acceptable to the City, including but not limited to a doctor's explanation of why the employee cannot perform his/her duties, when he/she is expected to return to work and periodic updates regarding the employee's ability or inability to return to work.

The employee on leave will contact a designated supervisor at least weekly to report on his/her condition or status. Before returning to work from a medical LOA, the employee will be required to submit documentation from his/her doctor stating that the employee is able to resume his/her normal job duties.

An employee's seniority will not accrue during the leave of absence. The employee's anniversary date will be adjusted according to the length of absence.

E. Other Employment During Leave.

Under no circumstances may an employee on an authorized LOA without pay work another job, whether for pay, as a volunteer or as self-employment, unless expressly authorized in writing by the Chief of Police and the Human Resources Manager.

F. Reinstatement

Employees returning from an authorized LOA will be reinstated to their same position or one of similar pay and status, provided the City's circumstances have not changed to the extent that it would be unreasonable to provide reinstatement or causes an undue hardship. If the same job or one of similar pay and status is not available, reinstatement may, at the City's discretion, be deferred until a position is available. Usually an employee who fails to return to work at the conclusion of an approved LOA will be considered to have voluntarily resigned his/her employment with the City.

G. Benefits and Premium Payments

All LOA's are unpaid. Vacation, sick leave, holiday pay and other benefits do not accrue during an unpaid LOA. **[Any benefit continuation during a LOA must be approved in advance by the City Manager]**.

Any insurance premiums, or partial premiums, normally paid on behalf of the employee by the City will not be paid by the City beginning the first day of the month following the starting date of a LOA. Employees who have group health or any other kind of insurance through the City continue to be responsible for paying all (City and Employee) portion of the premiums while on a LOA. An employee's failure to pay his or the City's portion of insurance premiums during a LOA may result in termination of coverage.

H. Revocation

The City Manager may revoke authorized leave without pay at any time. Failure to return to work after the expiration of an authorized LOA or failure to provide required medical status reports, physician's statements or to contact the City per the regular schedule will likely result in revocation of the LOA and/or disciplinary action up to and including termination of employment.

VII. MILITARY LEAVE AND DIFFERENTIAL MILITARY PAY

The City of Olivette shall comply with all regulations and requirements of the Uniformed Services Employment and Reemployment Rights Act (USERRA), as well as any other state and federal laws relating to employees in reserve or active military service and does not discriminate against employees who serve in the military. This policy covers

employees who serve in the uniformed services in a voluntary or involuntary basis, including active duty, active duty for training, initial active duty for training, inactive duty training and full-time National Guard duty. The City shall notify employees of their rights under USERRA by displaying the notice entitled "Your Rights Under USERRA."

VIII. MILITARY FAMILY LEAVE

The City provides leave to eligible employees in accordance with the Family and Medical Leave Act (FMLA) as it relates to employees who have family members in military service.

IX. SICK LEAVE

Every employee is important in his or her role within the Department. If an employee is absent, another employee must share the added duties and responsibilities, or the efficiency of the Department will suffer. Every day an employee is absent from work, the value of that employee's productivity is lost. It is also unfair to other employees who are called upon to pick up the extra workload, and at times, work costly overtime. It is a major responsibility of each supervisor to continually monitor the attendance of all subordinates. This permits early identification of attendance problems and proper application of this policy.

Sick leave shall not be considered as a privilege which an employee may use at the employee's discretion, but shall be allowed only in cases of actual sickness or disability of the employee or in circumstances where illness in the employee's immediate family makes it necessary for the employee to be absent.

Sick leave must be taken in increments of 1hour.

A. Accrual Rate and Eligibility

Full-time employees scheduled to work 2080 hours annually will accrue 8 hours of sick leave each month on the second pay date of the month.

Sick leave shall begin accruing the first month after date of hire on the second pay date. Sick leave shall not accrue for any semi-monthly pay period during which the employee is away from work for the entire pay period due to illness, injury or any approved leave without pay. An employee who is released for and offered light duty by the City, but who elects not to accept such assignment, will generally be ineligible for paid sick leave benefits.

B. Accrual Recovery Method

Those employees who stop accruing for any of the above reasons will not accrue again until they have worked consecutively for one (1) pay period.

C. Maximum Accrual

Sick leave shall accrue to a maximum of 960 hours for employees working 2080 hours per year.

D. Payment of Sick Leave upon Separation

Employees employed prior to November 10, 2015 are eligible for payment of sick leave upon separation as follows:

Employees leaving the City with 20 to 29 years of service shall be entitled to a final payment for sick leave at a rate of one-half (1/2) of accumulated sick leave, up to a maximum of 160 hours of pay.

Employees leaving the City with 30 or more years of service shall be entitled to a final payment for sick leave at a rate of one-half (1/2) of accumulated sick leave, up to a maximum of 320 hours of pay.

This amount will be paid in lump sum at the time of separation.

One-time implementation policy:
Employees as of November 10, 2015 who are 50 years or older AND with 10 or more years of service may opt to stay under the current policy. Employees must make the decision upon adoption of the new Handbook and will not be given an opportunity to change their decision. Future changes to this policy will be at the discretion of the City Council and this policy does not constitute a contractual agreement with employees.

E. Authorized Use of Sick Leave

Accrued sick leave may be used for absences due to the employee's bona fide personal illness, accident, injury that prevents him or her from working, or birth of a child (if the employee physically gave birth; otherwise use of sick leave for the birth of a child falls under the section below.) Sick leave may also be used by an employee for his or her own scheduled doctor and dentist appointments.

F. Authorized Use of Sick for Employee's Immediate Family

Sick leave may also be used for absences when the employee is needed to care for a member of his or her immediate family who is ill or injured and requires the employee's personal care or presence. A medical certification may be required to support the need for additional sick leave use.

In the event of a life-threatening illness or injury of an employee's family member who does not meet the definition of "immediate family," the Chief of Police may allow the employee to use accrued sick leave.

G. Failure to Report Absence/Abuse of Sick Leave

Supervisors shall closely monitor use of sick leave. It is anticipated that employees using paid City sick time for their own illness/injury or that of a family member will use their sick leave time to recuperate or care for their family member. Trips to the doctor or hospital stays which take the employee away from the home are acceptable, but other personal pursuits during paid sick leave will be considered an abuse of this policy. Abuse of sick leave, including use of sick leave for anything other than an illness, injury, or doctor/dentist, appointment as provided for in this policy, may result in immediate disciplinary action, up to and including termination of employment, and may also render the employee ineligible for paid sick leave benefits. Maternity and paternity are covered under sick leave benefits for qualifying FMLA purposes. Similarly, employees who fail to timely report an absence or tardiness due to illness, injury, or doctor/dentist appointment may be disqualified from using sick leave for their absence.

H. Other Employment During Sick Leave

Employees on sick leave, whether paid or unpaid, may not work a second job, including self-employment or participate in volunteer work, during the period of leave, even if they have written authorization from the Chief of Police that generally authorizes the employee to work a second job. Exceptions to this policy may be obtained in writing from the Chief of Police.

I. Use of Other Leave

If approved by the Chief of Police, employees who have successfully completed six (6) months of employment and who have no accrued sick leave time, may use accrued unused vacation leave, other accrued paid leave, or leave of absence without pay. Official holidays observed by the City while an employee is on approved paid sick leave will be treated as a paid holiday rather than a day of sick leave, if the employee is eligible for the paid holiday.

J. Documentation

Employees requesting paid sick leave must request approval from their supervisor. An employee must present satisfactory proof of illness/injury that prevents him from working whenever the employee uses sick leave for three or more consecutive workdays, or at any other time if requested by the City.

An employee may also be required to present satisfactory proof of a family relationship and/or satisfactory proof of a family member’s illness or injury if the employee wishes to use accrued sick leave to care for the family member. If the employee fails to present such proof in a timely manner, use of sick leave will be disallowed and no other paid leave may be used for the absence. Abuse of sick leave may result in discipline, up to and including termination of employment.

K. Family and Medical Leave Act

Any absence that qualifies for both sick leave and leave under the Family and Medical Leave Act will follow the guidelines set out in this policy and will typically run concurrently, as both FMLA leave and sick leave.

L. An employee reporting sick must notify the supervisor on duty at least six (6) hours in advance of the time the employee is scheduled for duty, unless the employee can show good cause for a shorter notification.

M. On consecutive sick days, the employee must notify the Department on each day, unless specifically exempted from this requirement.

N. A Payroll Action Request Form will be filled out by the Supervisor on duty as soon as possible.

X. REPORTING SICK WHILE ON DUTY

A. An employee who becomes ill while on duty must notify his/her supervisor of the illness prior to being excused from duty.

B. The employee's individual work record sheet should indicate the same.

C. The employee will prepare a Payroll Action Request Form.

XI. VACATION (ANNUAL LEAVE)

Vacation leave is an earned benefit intended to provide employees with paid time away from the work environment to pursue activities that will promote the well-being of the individual. Vacation leave may also be used for purposes of attending to personal business, extension of sick leave when accrued sick leave is exhausted, and inability to travel to work because of inclement weather or for other purposes.

A. Scheduling Vacation Leave

Employees are expected to submit their preferred vacation schedule to the Deputy Chief as far in advance as possible to avoid any scheduling problems that may develop. Whenever possible, vacation time will be granted at the convenience of the employee; however, the Chief of Police must be certain that vacations do not interfere with the normal functions and activities of Departmental operations.

Vacations will be selected each year according to seniority. Employees are expected to monitor their own vacation hours with the understanding that no more than 160 vacation hours may be carried over into the following calendar year.

Vacation leave may be taken in 4-hour increments of time.

B. Vacation Accrual Rate

All full-time employees accrue vacation leave for each complete payroll period in which at least one hour was actual work time. Vacation hours will not accrue in any pay period during which an employee is absent on sick leave, injury leave or unpaid leave for the entire period, unless otherwise required by statute.

Accrual rates are based on length of service with the City

Service Period	Hours Accrued monthly on the second pay date 2080hr/yr)
First four years of service	8
5 through 9 years of service	10
10 through 14 years of service	14
15 through 20 years of service	16
21 through 24 years of service	18
25 + years of service	20

C. Maximum Vacation Accrual

Unused leave may be carried into the next calendar year. However, the maximum carryover of vacation leave is 160 hours for those working 2080 hours per year.

The City Manager is authorized to offer vacation buy back to those employees whose vacation accruals exceed the limitations contained herein on the date of the adoption of this policy. This authorization expires on the one-year anniversary of the adoption of this City policy and shall not be extended without specific City Council authorization.

The City Manager is authorized to waive the maximum accrual limitation if the needs of the City preclude an employee from taking vacation, but at no time may an employee's leave accrual balance exceed 360 hours.

D. Compensation for Vacation leave

Vacation is paid at the employee's regular rate of pay at the time vacation leave is used and is paid only for hours the employee would ordinarily have worked.

Upon an employee's resignation, termination, separation, or retirement, an employee shall be paid for accrued unused vacation leave at the rate of pay the employee was receiving at the time of separation up to their maximum accrual limitation, less any legal and authorized deductions. Upon the death of an employee, payment for accrued unused vacation leave shall be made to the employee's beneficiary. Pay shall be at the employee's last regular rate of pay.

E. Temporary, and Seasonal Employees

Temporary and Seasonal employees are not eligible to accrue vacation leave.

F. Vacation During Initial Six Months of Employment

Vacation leave will not be authorized during the initial six months of employment for any employee, unless authorized by the City Manager. If the employee leaves employment with the City for any reason during this initial six-month period, he or she will not be entitled to payment for accrued unused vacation leave.

G. Holidays During Vacation

Except for Police Officers and Firefighters, if a holiday falls during an employee's scheduled vacation, the time will be considered holiday leave and not vacation leave.

H. Required Vacation Leave

When it appears that time away from work may be in the best interest of the employee or the City, the Chief of Police may, with the approval of the City Manager, require the employee to take at least one week of accrued vacation. Similarly, the City Manager may require the Chief of Police to take accrued vacation leave.

IX. VOTING LEAVE

Employees registered to vote in any election held within the State of Missouri or any primary election held in preparation for such election, on the day of election, shall be entitled to leave from duty which would allow three hours of voting time between the time of opening and the time of closing of the polls. Such leave must be requested prior to the day of election.

This section shall not apply to a voter on the day of election if there are three successive hours while the polls are open in which the employee is not on duty. Only the authorized Supervisor may specify the three hours between the time of opening and closing of the polls during which an employee may be granted the voting leave.

The employee may be required to show a current eligible voter registration card to the Supervisor prior to release for voting.

This General Order supersedes all prior directives and orders inconsistent therewith.

BY ORDER OF:

Signature on File
Beth M. Andreski
Chief of Police
Effective Date: 12/2/2009
Revised: 6/18/2015
Revised: 7/22/2016
Revised: 3/9/2017
Revised: 4/14/2020
Revised: 11/13/2023
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